

EMPLOYMENT AGREEMENT BETWEEN BHARAT INDUSTRIES INC. AND DELTA CONSULTING LLP

Between: **Bharat Industries Inc.** (Employer) and **Delta Consulting LLP** (Employee)

Effective Date: 2023-03-02

Termination Date: 2026-03-02

Governing Law: the laws of the State of New York

1. Payment Terms

Delta Consulting LLP shall pay Bharat Industries Inc. a fee of Rs. 1,48,00,000 (Rupees One crore, forty-eight lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Delta Consulting LLP. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

2. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

3. Term

This Agreement shall commence on the Effective Date, 2023-03-02, and shall continue until 2026-03-02, unless earlier terminated in accordance with Clause 2. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

4. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

5. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

6. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this employment Agreement dated 2023-03-02 between Bharat Industries Inc. and Delta Consulting LLP. "Services" means the services described in Clause 1. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

6.99. Indemnity Without Cap

Delta Consulting LLP shall indemnify and hold harmless Bharat Industries Inc. from and against any and all claims, demands, actions, losses, damages, liabilities, costs, charges, and expenses (including legal fees on a full indemnity basis) without any limitation or cap, arising out of or related to Delta Consulting LLP's use of the Services, whether or not Bharat Industries Inc. was advised of the possibility of such claims.

7. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Bharat Industries Inc. shall process personal data of Delta Consulting LLP's employees or customers only as necessary to perform the Services and strictly in accordance with Delta Consulting LLP's written instructions. Bharat Industries Inc. shall implement appropriate technical and organisational measures to protect such data.

8. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

9. Audit Rights

Delta Consulting LLP or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Bharat Industries Inc.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Bharat Industries Inc.'s operations. The cost of the audit shall be borne by Delta Consulting LLP, unless the audit reveals an overcharge of more than five percent (5%), in which case Bharat Industries Inc. shall bear the cost.

10. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

IN WITNESS WHEREOF

Employer

Bharat Industries Inc.

Signature: _____

Name: _____

Title: _____

Date: _____

Employee

Delta Consulting LLP

Signature: _____

Name: _____

Title: _____

Date: _____